

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

1. Identification of the agency and the contracting activity.

U.S. Department of Justice, Federal Bureau of Prisons, Central Office, Administration Division, Acquisitions Branch, Technology Procurement Section.

2. Nature and/or description of the action being approved.

The procurement action to be approved is a Firm-Fixed-Price contract for Medical Claims Adjudication (MCA) services.

3. Description of Supplies/Services required to meet the Agency's Needs including the estimated value:

The Bureau's Health Services Division (HSD) has a requirement for Medical Claims Adjudication services (MCA) and fraud detection. This software platform will ensure healthcare Service providers are paid under Medicare-based rate structures. This guarantees compliance with Medicare Claims processing guidelines/manual in conjunction with the National Correct Coding Initiative edits and for fee schedule healthcare providers. The objective is to comply with the applicable negotiated fee schedule.

The estimated total dollar value of this procurement is \$5,930,000.00 for a performance period of 12-Months.

4. An identification of the statutory authority permitting other than full and open competition:

The statutory authority 41 U.S.C.3304(a)(2) allows noncompetitive procedures to be used when the executive agency's need for the property or services is of such an unusual and compelling urgency that the Federal Government would be seriously injured unless the executive agency is permitted to limit the number of sources from which it solicits bids or proposals. The use of this authority is justified in accordance with FAR 6.303-2(b). The Contracting Officer has determined, due to the unusual and compelling urgency, the Government would be seriously injured unless the agency precludes full and open competition in satisfying the agencies immediate need for medical claims adjudication services.

5. Determination that proposed Contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

The MCA system is a hybrid design, leveraging the PLEXIS QC core administrative (claims) processing platform as the engine, which enables Apprio to customize the system to include a fraud monitoring and detection platform. The MCA claims information is the foundation of outside medical cost analytics. The real-time tracking of all database elements includes fraud alerts and reports highlighting potential fraud/abuse. The Apprio solution provides customized Explanation of Benefits (EOBs) to meet FBOP program needs. The use of analytic (business analytics/business intelligence) tools enables further drill-in, drill-thru capabilities to analyze system data (claims, authorizations, inmates, providers, etc.). The customized result provides medical claims processing and a robust fraud detection system.

The MCA system design is the result of years of testing and learning to understand the BOP process and technology environment. Apprio has refined the system design to meet the BOP requirements for a customized claims processing and robust fraud detection program. The MCA hybrid system provides the BOP a custom interface allowing BOP systems to transmit and receive information utilizing Amazon Web Services AppStream. Apprio's custom interface is the only known option available for immediate implementation, providing a complete solution without multiple awards and additional cost within the required time constraints.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practical, including whether a notice was or will be publicized as required by Subpart 5.2 and if not, which exception under 5.202 applies:

This procurement action is exempt from the synopsis requirement in accordance with the stated exception under FAR 5.202(a)(2); The proposed contract action is made under the conditions described in 6.302-2 (or, for purchases conducted using simplified acquisition procedures, if unusual and compelling urgency precludes competition to the maximum extent practicable) and the Government would be seriously injured if the agency complies with the time periods specified in 5.203.

The agency will publish the approved unusual and compelling justification within 30 days to the government point of entry, <https://www.sam.gov>, website as required by 41 U.S.C. 3304(f).

- 7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:**

The contracting officer has evaluated the proposed price and established price reasonableness utilizing the Price Analysis technique at FAR 15.404-1(b)(2)(ii), comparison of the proposed prices to historical prices paid and determined the anticipated cost to the government to be fair and reasonable.

- 8. A description of the market research conducted and the results or the reason market research was not conducted:**

Market research was previously completed prior to the solicitation that resulted in award of the FBOP's Contract 15BNAS19DRCA046, which included the anticipated use of the base and all option years. Additional market research completed for this requirement indicates similar conditions exist now as during the previous award.

- 9. Any other facts supporting the use of other than full and open competition:**

Apprio is the only responsible source for the immediately required Medical Claims Adjudication and Fraud Detection services that can provide a custom BOP system without duplication of costs already incurred. Apprio has developed a custom interface allowing BOP systems to transmit and receive information utilizing Amazon Web Services AppStream.

- 10. A list of Sources, if any, that expressed, in writing, an interest in the acquisition:**

Apprio Inc
2201 Wisconsin Ave NW STE 245
2nd Floor
Washington, DC
20007-4105
UEI: D6Y7R4WZCUK8

- 11. A statement of actions, if any, that were taken to remove or overcome any barriers to completion:**

The Bureau is committed to the competitive acquisition of requirements. It is the Bureau's policy to seek full and open competition to meet the Bureau's requirements when such competition does not impede mission imperatives.

TECHNICAL AND REQUIREMENTS CERTIFICATION:

I certify that the facts and representations under my cognizance, which are included in this justification and form a basis for this justification, are complete and accurate to the best of my knowledge.

JON HEMPHILL Digitally signed by JON HEMPHILL
Date: 2025.04.08 14:12:24 -04'00'

Jon Hemphill,
Medical Contracting Consultant
HSD Financial Management

Date

**CONTRACTING OFFICERS CERTIFICATION AND COMPETITION ADVOCATE
APPROVAL:**

I certify that this justification is accurate and complete to the best of my knowledge and belief. In accordance with FAR 6.304(a)(2), this justification is hereby approved.

**RANDALL
BURLESON** Digitally signed by
RANDALL BURLESON
Date: 2025.04.10
07:31:31 -04'00'

Randall C. Burleson, CPCM
Procurement Executive
Senior Deputy Assistant Director
Administration/Competition Advocate

Date